J.S.L vs Dakshin Haryana Bijli Vitran Nigam & Anr on 24 March, 2011

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            Before the Appellate Tribunal for Electricity
                      (Appellate Jurisdiction)

                       Appeal No. 138 of 2010

Dated : 24.03.2011

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam
         Chairperson
         Hon'ble Mr.V.J.Talwar, Technical Member

In the matter of:

J.S.L.                                      ...Appellant(s)
                                 Vs

Dakshin Haryana Bijli Vitran
Nigam Ltd. & Anr.                           ...Respondents


Counsel for Appellant(s)    : Mr. Kumar Saurabh, Advocate


Counsel for Respondent(s):Mr. Anand K. Ganesan, Advocate
                               for HERC.
                          Mr. M.R. Baskar, Advocate for
                               Respondent No.1.


                                ORDER
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We have heard Counsel for the parties.

The Appellant filed an Application before the Commission praying for the declaration that the Appellant is entitled for rebate from the date of introduction of the FSA i.e. December, 2006 on which month the benefit accrued.

Though this plea was contested by the Licensee, the Respondent herein, stating that this rebate would apply only from the date of issuance of circular dated 5.11.2008, the Commission thought it fit to hold that the Appellant is entitled to the rebate not from the date of circular but from the date of its earlier order dated 20.12.2007.

Aggrieved over this finding with reference to the date from which the Appellant is entitled to get the rebate, this Appeal has been filed contending that the Appellant is entitled for the Rebate from December 2006.

The only question that arises for consideration is that whether the Appellant is entitled to this rebate either from the date of the earlier order dated 20.12.2007 or from December 2006?

On going through the impugned order it is clear that the Commission has held that the Appellant is entitled for the rebate but this was applicable only from the date of the earlier order dated 20.12.2007 since this issue has already been decided in the said matter filed by another party. This ground, in our view, is not a valid one. We are only concerned with the question whether the appellant is entitled for the rebate from the date when the benefit accrued.

On going through the records, it is seen that the benefit accrued from December 2006 on which month the FSA was introduced and therefore we are of the view that the Appellant is entitled to rebate from December 2006. Accordingly, we set aside the order impugned remanding the matter to the Commission to decide the matter afresh in the light of our findings after hearing the parties concerned including the consumers similarly placed.

With this observation, the Appeal and other applications are disposed of.

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  (V.J.Talwar)            (Justice M. Karpaga Vinayagam)
Technical Member                    Chairperson
Gb/ss
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